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File No.: EXP202309003

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) on June 22, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against PUERTO FOGONES SL with NIF B09734724 (hereinafter, the defendant). The reasons on which the complaint is based are as follows:

“(…) that the establishment in question has a camera on its façade that is not properly marked with the required informative signs of a video surveillance area”—page no. 1—.

It provides images of the camera's location (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the defendant, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On September 22, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

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PRELIMINARY INVESTIGATION REPORT

Date on which the reported facts took place: June 21, 2023

Relevant documentation provided by the claimant:

- Photographs of the video surveillance camera on the façade of the establishment.

The background information recorded in the information systems is as follows:

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On June 28, 2023, notification of the complaint filed by the claimant was sent to PANDA PUERTO at the address indicated in the complaint, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), for them to analyze it and respond to this Agency within one month. The notification was returned as Absent. The notification was reiterated on July 21, 2023 (returned as Unknown) and August 10, 2023 (delivered on August 23, 2023).

INVESTIGATED ENTITIES

During the present proceedings, the following entities have been investigated:

PANDAPUERTO with NIF at C/ MISERICORDIA 9, LOCAL - 11500 EL PUERTO DE SANTA MARÍA (CÁDIZ) and

PUERTO FOGONES SL with NIF B09734724 with address at CALLE MISERICORDIA, 9 - 11500 EL PUERTO DE SANTA MARÍA (CÁDIZ)

RESULT OF THE INVESTIGATION ACTIONS

On that date, a postal request was sent to the defendant, which was collected on December 7, 2023.

The following information was requested:

1. Indicate the NIF number of the company that owns the business.
2. Indicate the NIF number and the contact email of the person responsible for the video surveillance system.
3. Indicate the number of cameras in the surveillance system, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used to view the images, in which the areas within the field of vision of the cameras can be appreciated. The cameras must not, under any circumstances, record or allow the viewing of neighboring land that is not owned by them, nor the interior of homes or any other private or reserved space, nor of the public road, except for the portion of the public road minimally necessary for the intended security purpose.
4. If the cameras capture public roads, they must also provide photographs of the sign or signs that warn of the existence of a video surveillance area, in which the information contained in the sign is clearly visible, as well as its location. If the cameras have been installed in the garage of the community parking lot, they must provide the minutes of the Homeowners' Association meeting in which the installation of the cameras was approved by the majority required in Article 17.3 of Law 49/1960, of July 21, on Horizontal Property. They must also provide photographs of the sign or signs that warn of the existence of a video surveillance area with the details indicated above.

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5. In the event that you have contracted with a security company for the installation, maintenance, and/or management of the video surveillance system, you must provide a copy of the contract signed with the security company and, when possible, a technical report of the video surveillance system prepared by that company.
6. If the surveillance system records images, indicate the retention period for these images.
7. If the cameras are fake, provide the invoice, purchase receipt, or any other document that serves to prove that they are fake, or, failing that, provide a responsible declaration in which you state, under your responsibility, that the cameras are fake.
8. If the cameras are not operational or have been removed and therefore do not allow for the viewing or recording of images, you may provide a responsible declaration.
9. Any other information that you consider relevant and that may serve to assess the adequacy of the video surveillance system to data protection regulations.

On 01/10/2024, a request for collaboration was sent to the City Council of El Puerto de Santa María via the Notific@ system, which was received on 01/12/2024. The following information is requested:

- NIF and business name of the establishment located at C/ MISERICORDIA 9, LOCAL 11500 EL PUERTO DE SANTA MARÍA (CÁDIZ), (trade name: "PANDA").
- Verification of the existence of unmarked video surveillance cameras on the façade of said establishment.

On 02/07/2024, a written response from the City Council of El Puerto de Santa María was received with registration number REGAGE24e00011753233. It states the following:

"In view of the request made by the AEPD, from the Legal Advisory of the Local Police, and after consultation with ***PUESTO.1, they inform us that the competencies in this matter of surveillance and inspection correspond to the National Police Corps, so they must request said collaboration from the National Police Station of El Puerto de Santa María."

On 02/15/2024, a request for information was sent via the Notific@ system to the City Council of El Puerto de Santa María. It was delivered on 02/20/2024. The following information is requested:

- NIF and business name of the establishment located at C/ MISERICORDIA 9, LOCAL 11500 EL PUERTO DE SANTA MARÍA (CÁDIZ), (trade name: "PANDA") - according to the information in the city council's records (activity license, etc.).

On 03/08/2024, this notification was reiterated via Notific@ and was delivered on 03/11/2024.

On 04/03/2024, a search was conducted on Google for the party being claimed. The Facebook page of the company was obtained: <https://www.facebook.com/p/Pandapuerto-100083475456007>. A diligence ("Diligence Facebook") with screenshots of the profile is attached. The following information was discovered:

- It is observed that the previous trade name of the establishment is "Black Bar."
- A contact phone number is obtained: ***TELÉFONO.1.

A Google search was conducted for the trade name "Black Bar," and it was found that the company associated with this name is Puerto Fogones S.L. URL:

<https://www.iberinform.es/empresa/9870708/puerto-fogones> (See attached diligence "Diligence Iberinform").

A search was conducted in Axesor (see attached diligence "Diligence Axesor"), and it was verified that the company Puerto Fogones S.L., whose partner and sole administrator is B.B.B., is registered at the address C/ MISERICORDIA 9, LOCAL - 11500 EL PUERTO DE SANTA MARÍA (CÁDIZ). This address corresponds with that of PANDAPUERTO provided in the complaint.

On 04/03/2024, a search was conducted for the contact phone number published on the Facebook page in the CNMC's Telecommunications Numbering Registry data inquiry service. It was found that the number belongs to Vodafone España S.A.U. A diligence ("Diligence CNMC") is attached.

On that date, a request for information was sent via the Notific@ system to Vodafone España S.A.U. requesting the ownership of the phone number published on the Facebook page. On 04/16/2024, a response was received indicating that the phone number belongs to the entity DESICO CADIZ SL with CIF B-72362098, whose registered office is located at Calle Finlandia, 29, B, A, 11408, Jerez De La Frontera, Cádiz. A search was conducted in Axesor, and the document "Diligence DESICO SL" with the company data obtained from that platform is attached to the file. It was found that the partner and sole administrator of this company is B.B.B., the same as in the company Puerto Fogones S.L.

On the same date, a request for information was sent via the Notific@ system to the company Puerto Fogones S.L., which has expired. It was reiterated via postal mail on 04/15/2024, being collected on 04/26/2024. No response has been received as of the date of signing this report.

On 04/18/2024, a request for information was sent to the Junta de Andalucía requesting the business name and NIF of the company that owns the workplace located at CALLE MISERICORDIA, 9, PORTAL A, 11500 EL PUERTO DE SANTA MARÍA.

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(CÁDIZ) (trade name "PANDAPUERTO" or "BLACK BAR"). No response has been received as of the date of signing this report.

On 08/04/2024, the PS/00181/2024 (EXP202405368) was opened due to lack of attention to the requirements made to the City Council of El Puerto de Santa María. On 15/04/2024, the Agreement of Initiation was notified, which was delivered on 16/04/2024.

On 30/04/2024, a document in response to the Agreement of Initiation of PS/00181/2024 was received at the AEPD with registration number (REGAGE24e00031572591). In this document, signed by the Deputy Mayor Delegate for Innovation, Communication, and Administrative Simplification, the requested information is provided, and the following is reported:

"...the information has been gathered through the files of the Urban Discipline department and the Tax Inspection, being the following:

- There is a disciplinary file in the name of PUERTO FOGONES S.L. with CIF B09734724, and there is a Local Police report in the name of B.B.B. with NIF ***NIF.1.
- On the other hand, according to the Tax Inspection, the entity PUERTO FOGONES SL NIF B09734724 is listed as the owner of the establishment called "PANDA" located at c/ Misericordia 9, with RC 8341708QA4584A0010PQ."

It is verified that the name and NIF of the claimed company provided by the City Council match the previously investigated information: PUERTO FOGONES S.L. with NIF B09734724.

CONCLUSIONS

It has been determined that the company and NIF associated with the establishment located at CALLE MISERICORDIA, 9, PORTAL A, 11500 EL PUERTO DE SANTA MARÍA (CÁDIZ) (trade name "PANDAPUERTO") is PUERTO FOGONES SL with NIF B09734724.

Three requests for information have been sent to the claimed party, with no response received as of the date of signing this report:

- Postal delivery to the establishment addressed to "PANDA" dated 16/11/2023 and received on 07/12/2023.
- Electronic delivery dated 03/04/2024 to the company PUERTO FOGONES SL resulting in expiration.
- Postal delivery dated 15/04/2024 to the address of the establishment addressed to "Puerto Fogones SL" was delivered on 26/04/2024.

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FIFTH: On 24 July 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the claimed party for the alleged infringement of Article 13 of the GDPR and Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

Upon consulting the database of this AEPD, the Official Postal Service certifies that the attempt to notify at the indicated address is recorded as due to unknown reasons on 22/08/24.

On 28/08/24, notification was made via B.O.E of the initiation agreement associated with File EXP202309003.

SIXTH: On 09/09/24, attentive collaboration is requested from the Security Forces and Corps of the locality to verify the presence of cameras at the establishment subject to the complaint, as well as whether it complies with the other requirements demanded by the regulation.

SEVENTH: On 22/10/24, a report is received from the National Police Corps - Local Police Station El Puerto de Santa María - in which, after visiting the site, the following is noted:

"Upon arrival of the officers, it is observed that the business "PANDA" is closed to the public, apparently permanently, with a sign on the main door stating "for rent" and a phone number. Additionally, several electrical devices have been removed from the façade of the building, one of which may have been where the camera referred to was possibly installed. After the appropriate inquiries, the tenant of the premises is identified as B.B.B., with DNI ***NIF.2 and phone ***TELÉFONO.1, who communicates that he indeed had a camera installed but, following instructions from the Honorable City Council of El Puerto de Santa María, removed it at the beginning of summer, although he cannot specify the date.

The existence of the AEDP announcement signs could not be verified. Photographs of all the above are taken and attached to the body of this document."

EIGHTH: On 02/12/24, a telephone conversation is held with the responsible party of the installation, Mr. B.B.B., at the mobile number (...), voluntarily providing the address for notification purposes as ***DIRECCION.1.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

First. The facts arise from the complaint dated 22/06/23, in which it is stated "camera on façade" that is not properly signposted.

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Second. Identified as the main responsible party is B.B.B., with DNI ***NIF.2, who states that the cameras have been dismantled due to the closure of the business.

Third. There is no evidence of the processing of third-party data associated with an identified or identifiable person, nor the storage of such data in any form.

Fourth. It has not been possible to verify whether the cameras were properly signposted or if they were operational.

Fifth. It is confirmed that at the present time there are no cameras due to the closure of the establishment subject to the complaint.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Alleged Breach of Obligation

In this case, the complaint dated 22/06/23 is examined, which states the following:

"establishment with video surveillance cameras without an indicative sign regarding this (,,) ignoring what is captured in this case" —folio no. 1—.

Article 5.1 c) GDPR provides the following:

Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The installation of this type of device must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, this type of device cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, under the terms of the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "dummy" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, outside of the cases permitted by the regulations.

III

Upon examining the images provided by the complainant, it is observed that there is no informative sign in accordance with data protection regulations.

The informative sign, located in a visible area, must indicate the responsible party for the processing, the purpose of the processing, and how to exercise the rights (e.g., an address to which one can effectively direct inquiries).

Article 13 GDPR "Information to be provided when personal data are obtained from the data subject" 1. When personal data relating to him/her are obtained from a data subject, the data controller, at the time of obtaining these, shall provide all the information indicated below: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 22, section 4 of LO 3/2018 (December 5) states: The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

An access code or internet address to this information may also be included in the informative device (*the bold text belongs to this agency).

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Article 72, section 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years," particularly including the following: h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

IV

On 09/09/24, during the investigation phase, a request is made for the deployment of the Security Forces to the scene of the events to carry out the necessary inquiries for that purpose.

It is confirmed in an Official Letter dated 25/09/24 sent by the local Police Station of Puerto de Santa María that the business "PANDA" is closed to the public, apparently permanently, "with a sign on the main door stating it is for rent."

"Additionally, several electrical devices have been removed from the façade of the property, one of which could possibly be the location where the camera referred to was installed. After carrying out the necessary procedures, the tenant of the premises is identified as B.B.B., with ID ***NIF.2 and phone number ***TELÉFONO.1, who communicates that, indeed, he had a camera installed but that, following instructions from the Honorable City Council of El Puerto de Santa María, he removed it at the beginning of summer, unable to specify the date."

V

The principle of the presumption of innocence prevents the imposition of an administrative infringement when no evidence has been obtained and confirmed that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence presented and a contradictory procedure in which one's own positions can be defended. In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its forms is conditioned on the proper application of

the law.

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statements are conditioned on the presentation of evidence and a contradictory procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

VI

Conclusion

After examining the allegations of the acting force dispatched to the scene of the events, it is established that there are no misaligned video surveillance cameras, as the "closure" of the establishment occurred and the cameras were uninstalled.

Thus, it cannot be confirmed that they were misaligned, nor that there was unauthorized processing of personal data, or whether they were properly signposted, which leads to the filing of the current procedure.

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the current procedure as the facts subject to transfer to this agency have not been substantiated.

SECOND: TO NOTIFY this resolution to the responsible party of the entity PUERTO FOGONES SL.—Mr. B.B.B.—.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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